

25STCV21715 25STCV21715

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV21715 Hearing Date: July 1, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 1, 2026

Case Name: Chernyshova v. Max Benjamin Partners, Inc., et al.

Case No.: 25STCV21715

Matter: Demurrer; Motion to Strike

Moving Party: Defendant Max Benjamin Partners, Inc.

Responding Party: Plaintiff Maria Chernyshova

Notice: OK

Ruling: The Demurrer is overruled.

The Motion to Strike is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an employment action.

Defendant Max Benjamin Partners, Inc. demurs to the entirety of the FAC for uncertainty and failure to state sufficient facts.

Defendant also seeks to strike the FAC as untimely and improper. This has already been rejected, and the Court has made clear that the FAC is to be heard as the operative pleading. The Motion to Strike is, therefore, denied.

When considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirday (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Plaintiff has pleaded a plethora of facts to support her harassment claim. Plaintiff alleges, among other things, that Max Mellman made sexual comments to her; told her that advancement would require staying late at the office and then indicated that other female colleagues would sleep with him at that time; touched Plaintiff despite her lack of interest; and constantly invited Plaintiff to unusual matters, like breakfast at San Vicente Bungalows while speaking about his sex life.

Likewise, these facts support constructive termination due to the intolerable work conditions as well as extreme and outrageous conduct constituting IIED.

Discrimination has been pleaded in that Plaintiff alleges that her gender was used as a basis for differential treatment with respect to promotions; additionally, Plaintiff alleges that she received a poor performance evaluation after Max's advances were rejected. This would also support the derivative claim for failure to prevent discrimination and harassment.

Finally, the FEHA retaliation claim is sufficient for the pleadings stage because refusing an employee's sexual advances can be considered protected activity.

In sum, the Demurrer is overruled. An answer is to be filed within 10 days.

Moving party to give notice.